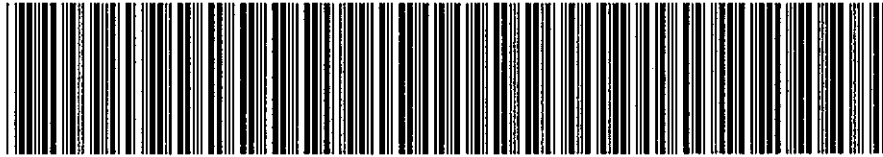


EWR D&I ANNOTATION



FAN-000001L092001DP94-2333

Artemis # : 000001L092001DP94**Record Created Date :****Printed Date :** 06/17/2010**Description :**

DI09-096. SEQ ID 94. 2009 Q2. INCIDENT TAKES PLACE ON AN OHIO HWY. POLICE REPORT STATES DRIVER OF A 2007 COBALT LOST CONTROL OF HIS VEHICLE BECAUSE ANOTHER VEHICLE GOING IN THE SAME DIRECTION CUT HER OFF, VEHICLE HIT A GUARDRAIL WITH THE FRONT OF CAR. PRE-CRASH DATA SHOWS VEHICLE AROUND 55 MPH. DRIVER'S SEAT BELT WAS UNBUCKLED. DRIVER ALLEGES AIR BAGS SHOULD HAVE DEPLOYED. VOQ-37. PURSUIT-0 (1 FOR 2006). TSB-0. RECALLS-0. *RM



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Avenue SE.
Washington, DC 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

December 16, 2009

Ms. Gay P. Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217kb
DI09-096

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors Corp. (GM) in its light early warning report from 2nd quarter of 2009. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 3, 7, 15, 39, 63, 78, 81, 82, 85, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 98, 100, 101, 103, 105, 106, 107, 108, 109, 110, 131, 137, 145, 146, 148, 149, 158, 167, 168, 178, 209, 216, 219, 231, 243, 253, 254, 255, 256, 257, 258, 259, 261, 263, 264, 266, 270, 271, 276, 281, 282, 288, 289, 290, 291, 292, 293, 297, 299, 300, 311, 312, 327, 338, 339, 341, 343, 344, 345, 346, 348, 349, 351, 352, 354, 370, 382, 390, 391	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the above table.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM's custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590. GM is required to submit two copies of the documents containing allegedly confidential information (except only one copy of blueprints) and one copy of the documents from which information claimed to be confidential has been deleted. Please remember that the words "CONFIDENTIAL BUSINESS INFORMATION" must appear at the top of each page containing information claimed to be confidential, and the information must be clearly identified in accordance with 5 U.S.C. § 512.6. If you submit a request for confidentiality for all or part of your response to this letter, that is in an electronic format (e.g., CD-ROM), your request and associated submission must conform to the new

requirements in NHTSA's Confidential Business Information Rule regarding submissions in electronic formats (49CFR 512.(c)). See Federal Register, volume 72, page 59434 (October 19, 2007).

12660

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **January 22, 2010**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS LLC
Global Interior and Safety Center

11 February 2010

Ms. Christina Morgan, Chief
Early Warning Division, NVS-217
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave., S.E.
Washington, DC 20590

NVS-217kb
DI09-096

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated December 16th, 2009 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from the 2nd quarter of 2009.

GM's response is comprised of 88 disks for the incidents that are the subject of DI09-096.

Attachment "A" includes instructions for navigating the disk. Each disk, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 3 18605620-675350 and 2009 BUICK ENCLAVE. When the disk is launched, this identification number appears again along with all of the documents on the disk (including photographs and videos, if applicable) listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 3 18605620-675350_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the Inquiry and Response in the index
for the disk are as follows:

DI09-096
3 18605620-675350
2009 BUICK ENCLAVE

Request for Information:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**



Response: See attached document.

2. **Provide a copy of the Police Accident Report.**

Response: See attached documents and photographs.

The remaining document listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

3 18605620-675350 **_01_001** - is the first document responsive to Inquiry no. 1.

3 18605620-675350 **_02_001** - is the first document responsive to Inquiry no. 2.

Your inquiries and our corresponding replies are as follows:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See attached document.

The table below lists the incident that is the subject of DI09-066, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR) or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further.

(88 Vehicles from the Light Vehicle Template)		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
3	5GAER23D69J [REDACTED]	NISM
7	UNKNOWN	NISM
15	5GADS13S142 [REDACTED]	NISM
39	1G6DU57V090 [REDACTED]	LIT
63	UNKNOWN	NISM
78	1G1AL52F957 [REDACTED]	NISM
81	1G1AK52F257 [REDACTED]	NISM
82	1G1AK55F167 [REDACTED]	NISM
85	1G1AK15F467 [REDACTED]	NISM
87	1G1AK55F267 [REDACTED]	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
88	1G1AM15B367	NISM
89	1G1AL15FX67	NISM
90	1G1AK15F367	NISM
91	1G1AL58F977	NISM
92	1G1AK15F077	NISM
93	1G1AK55F577	NISM
94	1G1AK15F477	NISM
95	1G1AK55F577	LIT
96	1G1AK15F077	NISM
98	1G1AK58FX77	NISM
100	1G1AK55FX77	NISM
101	1G1AK15F477	NISM
103	1G1AK18F887	NISM
105	1G1AL58F287	NISM
106	1G1AK18F187	NISM
107	1G1AL58F987	NISM
108	1G1AK58F987	NISM
109	1G1AL58F987	NISM
110	1G1AT58H097	NISM
131	3GNDA23P76S	NISM
137	3GNDA13D48S	NISM
145	2G1WF52E049	NISM
146	2G1WF52E249	NISM
148	2G1WH52K049	NISM
149	2G1WH52K049	NISM
158	2G1WT58N279	NISM
167	2G1WT57K791	NISM
168	2G1WC57M591	NISM
178	1G1ZG57B39F	NISM
209	1GCEK24009Z	NISM
216	1GCHK29K57E	NISM
219	1GBJC34K78E	NISM
231	1GNFC16047J	NISM
243	1GNFK33059R	NISM
253	1GNDS13S642	NISM
254	1GNDT13S052	NISM
255	1GNDT13S052	NISM
256	1GNDS13SX52	NISM
257	1GNDT13S852	NISM
258	1GNDT13S052	NISM
259	1GNDT13S352	NISM
251	1GNDT13S662	NISM
263	1GNDT13S682	NISM
264	1GNDT13S882	NISM
266	1GNDS33S892	NISM
270	1GNES16S866	NISM
271	1GNEV23D29S	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
276	1GNDU03E64D [REDACTED]	NISM
281	1GKEV23D59J [REDACTED]	NISM
282	1GKEV23D99J [REDACTED]	NISM
288	UNKNOWN	NISM
289	1GKDS13S442 [REDACTED]	NISM
290	1GKDT13S442 [REDACTED]	NISM
291	1GKDT13S552 [REDACTED]	NISM
292	1GKDS13S962 [REDACTED]	NISM
293	1GKDS13S462 [REDACTED]	NISM
297	1GKET16S956 [REDACTED]	NISM
299	1GKES12S046 [REDACTED]	NISM
300	1GKES12S956 [REDACTED]	NISM
311	3GTEC13C48G [REDACTED]	NISM
312	3GTEK13378G [REDACTED]	NISM
327	5GTDN136568 [REDACTED]	NISM
338	1G2ZF55B264 [REDACTED]	NISM
339	1G2ZF55B064 [REDACTED]	NISM
341	1G2ZG558364 [REDACTED]	NISM
343	1G2ZH18N374 [REDACTED]	NISM
344	1G2ZG58B574 [REDACTED]	NISM
345	1G2ZH57N584 [REDACTED]	NISM
346	1G2ZG57B384 [REDACTED]	NISM
348	1G2ZH57N684 [REDACTED]	NISM
349	1G2ZF57B584 [REDACTED]	NISM
351	1G2ZJ57B494 [REDACTED]	NISM
352	1G2ZH36N994 [REDACTED]	NISM
354	6G2EC57Y19L [REDACTED]	NISM
370	2G2WP552881 [REDACTED]	NISM
382	5S3ET13S662 [REDACTED]	NISM
390	5GZER13737J [REDACTED]	NISM
391	5GZEV23748J [REDACTED]	NISM

2. Provide a copy of the Police Accident Report.

Response: If available, see attached document(s) and photograph(s) on the enclosed disk(s).

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators and engineers working at the request of attorneys). GM is producing

responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

A handwritten signature in black ink, appearing to read 'G. Kent', with a stylized flourish at the end.

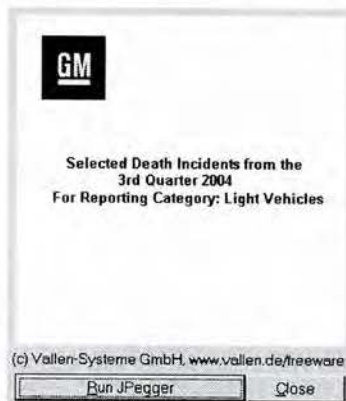
Gay P. Kent,
Director, Product Investigations
and Safety Regulations

Enclosures: 88 Disks
Attachment A

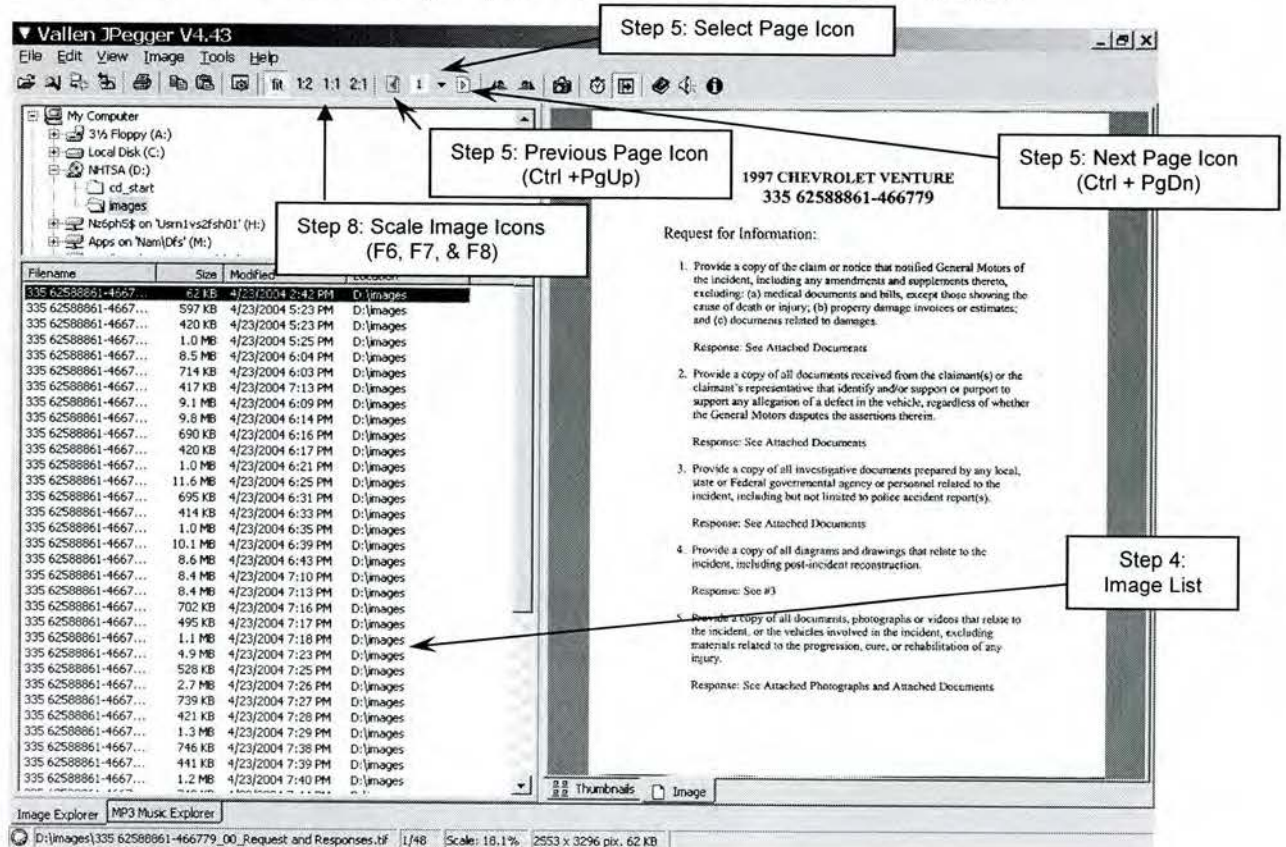
Attachment A

Instructions for using Disk Viewer

1. Insert the disk into the disk ROM drive; the disk will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



5. Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl + PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl + PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
6. By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl + PgDn** or **Ctrl + PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
7. Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
8. If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

The screenshot shows a legal document cover sheet titled "CIVIL CASE COVER SHEET" for the case "CARDONA V. CHEVROLET". The document is filed in the "SUPERIOR COURT FOR THE STATE OF CALIFORNIA, INDIO COUNTY". The cover sheet includes various checkboxes for case type, complexity, and other legal details. Annotations on the right side of the image point to specific features:

- Step 7: Next File (Image)**: Points to the "Next Image" button in the right-hand menu.
- Step 7: Next page**: Points to the "Next page" button in the right-hand menu.
- Step 8: Scale Image**: Points to the "Scale" section in the right-hand menu, which includes options for "fit", "Scale to fit", "Scale 50%", "Scale 100%", and "Scale 200%".
- Step 7: Image Properties**: Points to the "Image Properties" button at the bottom of the right-hand menu.

The cover sheet itself contains the following information:

ATTORNEY OR PARTY-RELATED ATTORNEY FIRM, FIRM AND ADDRESS:
 ERIC D. PARIS, ESQ., S/B# 147836
 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES
 381 S. THOMAS STREET
 SUITE 403
 POMONA, CALIFORNIA 91766
 TELEPHONE NO. 909-469-5127 FAX NO. 909-469-5126
 ATTORNEY FOR: PLAINTIFF'S

FILED AND OF COURT: JUDGE, CLERK, AND SHARED COURT, IF ANY
 SUPERIOR COURT FOR THE STATE OF CALIFORNIA
 INDIO COUNTY

CASE NAME: CARDONA V. CHEVROLET

CIVIL CASE COVER SHEET
☐ Limited ☒ Unlimited

Complex Case Designation
☐ Counter ☐ Joinder
 Filed with first appearance by defendant
 (Cal. Rules of Court, rule 1811)

PLEASE COMPLETE ALL FIVE (5) ITEMS BELOW

1. Check one box below for the case type that best describes this case:

☒ Auto Tort (22)
☐ Other PIP/DWI (Personal Injury/Property Damage/Wrongful Death) Tort
☐ Assault (24)
☐ Product liability (24)
☐ Medical malpractice (45)
☐ Other PIP/DWI (23)
☐ Non-PIP/DWI (Other) Tort
☐ Business tort/unfair business practice (37)
☐ Child rights (e.g., discrimination, false arrest) (55)
☐ Defamation (e.g., slander, RAD) (13)
☐ Fraud (18)
☐ Intellectual property (19)
☐ Professional negligence (e.g., legal malpractice) (25)
☐ Other non-PIP/DWI tort (26)
☐ Employment
☐ Wrongful termination (36)

☐ Contract
☐ Breach of contract/warranty (46)
☐ Collection (e.g., money owed, open book account) (39)
☐ Insurance coverage (14)
☐ Other contract (37)
☐ Real Property
☐ Eminent domain/condemnation (14)
☐ Wrongful eviction (33)
☐ Other real property (e.g., quiet title) (28)
☐ Unlawful Detainer
☐ Commercial (31)
☐ Residential (32)
☐ Drugs (34)
☐ Juvenile Delinquency
☐ Asset forfeiture (26)
☐ Petition for arbitration award (11)

☐ Will of decedent (32)
☐ Other probate matter (37)
☐ Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 188a-1812)
☐ Antitrust/Trade regulation (33)
☐ Construction defect (10)
☐ Claims insurance monies tort (33)

2. This case ☒ is ☐ is not complex under rule 1800 of the California Rules requiring nonpartisan judicial management:
 a. ☒ Large number of separately represented parties b. ☐ Large number of parties
 c. ☒ Extensive motion practice raising difficult or novel issues that will be time-consuming to resolve d. ☐ Coordination in other counties
 e. ☒ Substantial amount of documentary evidence f. ☐ Substantial post-trial issues

3. Type of remedies sought (check all that apply):
 a. ☒ Monetary b. ☐ Nonmonetary, declaratory or injunctive relief c. ☐ Other

4. Number of causes of action (specify): FIVE

5. This case ☐ is ☒ is not a class action suit.

Date: JULY 3, 2003

ERIC D. PARIS, ESQ., S/B# 147836
 (Print or print name)

NOTICE
 • Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (except under the Probate, Family, or Welfare and Institutions Codes) (Cal. Rules of Court, rule 1811).
 • File this cover sheet in addition to any cover sheet required by local court rule.
 • If this case is complex under rule 1800 at seq. of the California Rules of Court, you must also file a notice of complexity.
 • Unless this is a complex case, this cover sheet shall be used for statistical purposes only.

From: Integrated for Mandatory Use
 Revised: October 1, 2009
 902.220(1) Rev. January 1, 2009

CIVIL CASE COVER SHEET

Right-hand menu:
 Next Image
 Previous Image
 Next page Ctrl+PgDn
 Previous page Ctrl+PgUp
 Full screen image Ctrl+F11
 Slide show F10
 fit Scale to fit
 1:2 Scale 50% F5
 1:1 Scale 100% F6
 2:1 Scale 200% F7
 Rotate left Ctrl+Alt+L
 Rotate right Ctrl+Alt+R
 Rotate by 180°
 Copy to clipboard
 Copy file to... Ctrl+C
 Move file to... Ctrl+X
 Rename file... F2
 Delete file... Del
 EXIF Image Information...
 Preferences... Ctrl+H

DI09-096
94 278516408 – 669590
2007 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: See Attached Documents. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

Service Request Detail

SR No.	71-714628721	Ref No.		Goodwill	No Goodwill Offered	BRC Type	PAR
Account		Site		GW SubType		Bus. Unit	BRC
Last Name		First Name		Approval	Not Initiated	Area	PAR
Daytime #		Evening #		UCC	Restraints - (SIR) - Driver Side - Side	Sub-Area	Initiate PAR- Collision
Address		City	Strongsville	Involved Dir	The Merck Chevrolet Company	Safety	Yes
State	OH ZipCd	Con Acct		Source	Phone	Updated	4/6/2009 04:45:40 PM
Serial #/VIN	1G1AK15F477	Model Year	2007	Priority	Medium License # CHEVROL	Owner	MLCAKTE
Make	Chevrolet	Warr. Start	10/09/2006	Status	Open	Opened	4/6/2009 08:10:00 AM
Model	Cobalt	Mileage		Sub-Status	Dissatisfied	Closed	
Abstract	(Inspection) Non-Deployment						
Customer Description	This is a BRC PAR Case. Do not assume case. Forward any inquiries to Teresa Micak ext: 41345						

Pre-PAR

PAR Notifier	Incident Date/Time	Injuries	# Other Veh	# People in Veh	Road Surface	Road Cond	Fire Report	Police Report
Owner	4/5/2009 01:25:00 PM	Y	0	2	Asphalt	Other	0	5246152
Driver Last Name	Driver First Name	DOB	Disabilities	Height	Weight	DOB	Disabilities	
				5.4				
Insurance Agent Last Name	Insurance Agent First Name	Phone #	Insurance Agency					
Vincent	John	(440) 323-5131	American Family Insurance					
Incident Loc	Medina, Ohio	Incident Desc	going down the highway and a car cut me off and I hit the gaurd rail head on					
Component	airbags	Damage Desc	front of the vehicle is damaged					
Vehicle Loc	Center line collision center	Addl Info	the other occupant of veh was who didnt get hurt					
Emgcy Svc Names	unknown	Maint Loc	0					

PAR Detail

Collision	Y	Non Collision	Property Damage	Y	Thermal Evt	N	Spec Equip	wing and spoiler and sunroof
Vehicle Speed	55	Weather Condition	clear	Prop Owner		Property Type	personal	
Last Service Date		Loc Last Service		Property Location	trunk	Prop Est Repair Cost	\$0.00	
Veh Est Repair Cost	\$0.00	Spec Equip Installer	unknown	Prop Damage Description	pictures that I just bought	Inspected By		
Primary Veh Use	Personal	Inspection Type		Inspected By		Inspection Date/Time		
Veh Damage Description	no bumper no headlights the whole front is smashed to the point you can see the radiator			Explain Other	last month at the dealer for service.			

Service Request Detail

PAR Injuries

Last Name: [REDACTED] First Name: [REDACTED] DOB: [REDACTED] Location: [REDACTED] Phone: [REDACTED] Seating Pos: [REDACTED] Restraint Type: [REDACTED]
Occupant of Owner's Vehicle Driver seatbelt
Injury Description: [REDACTED] Medical Rpt: [REDACTED] Treatment Location: [REDACTED] Treated By: [REDACTED]
Hit forehead not sure what hit it on arms and knees are bruised 0 Southwest Hospital Abdallah Al-Shahed
Street Address: [REDACTED] City: Strongsville State: OH Zip Code: [REDACTED]

Activities

Created: 4/13/2009 04:04:16 PM Created By: GARCIAJR Assigned To: MLCARTE Activity Type: Scheduled Follow-up Activity Sub-Type: Scheduled Alarm Status: Completed Description: ESIS pick up?

Contact Last Name: [REDACTED] Contact First Name: [REDACTED] Account: [REDACTED] BAC Code: [REDACTED]

Comments: [REDACTED]

Confidential Comments: [REDACTED]

Created: 4/13/2009 04:02:05 PM Created By: GARCIAJR Assigned To: GARCIAJR Activity Type: BRC PAR Activity Sub-Type: ESIS - Atty Involvement Status: Done Completed: 4/13/2009 04:04:09 PM Description: attorney involvement

Contact Last Name: [REDACTED] Contact First Name: [REDACTED] Account: [REDACTED] BAC Code: [REDACTED]

Comments: [REDACTED]

Jesse Schmith - attorney
216-771-1414

Joe G/PAR/ATX

Confidential Comments: [REDACTED]

Created: 4/13/2009 04:00:35 PM Created By: GARCIAJR Assigned To: ESISBIQU Activity Type: Escalation Activity Sub-Type: ESIS - Atty Involvement Status: In Progress Completed: [REDACTED] Description: Attorney involvement - ESIS

Contact Last Name: [REDACTED] Contact First Name: [REDACTED] Account: [REDACTED] BAC Code: [REDACTED]

Comments: [REDACTED]

Jesse Schmith - attorney
216-771-1414

Joe G/PAR/ATX

Confidential Comments: [REDACTED]

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/13/2009 03:58:29 PM	GARCIAJR	GARCIAJR	Outbound Call Customer	Made Contact	Done	4/13/2009 04:00:33 PM	cust has retained attorney

Contact Last Name	Contact First Name	Account	BAC Code

Comments: Called daytime/cell phone #

Crm stated calling to inform that GM has not recvd inspection results.

Cust stated she has retained attorney for the accident as well as the allegation against GM.

Crm stated will proceed w/attorney from now on.

Cust stated her attorney is

Jesse Schmith
216-771-1414

Joe G/PAVATX

Confidential Comments:

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 04:49:44 PM	MLCAKTE	MLCAKTE	BRC PAR		Done	4/6/2009 04:49:59 PM	Inspection sent

Contact Last Name	Contact First Name	Account	BAC Code

Comments:

Confidential Comments:

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 04:45:40 PM	MLCAKTE	MLCAKTE	Ownership Changed	Ownership Escalated to BRC	Done	4/6/2009 04:45:40 PM	Ownership Escalated to BRC

Contact Last Name	Contact First Name	Account	BAC Code

Comments:

Confidential Comments:

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 04:40:30 PM	MLCAKTE	MLCAKTE	Scheduled Outbound Call	Cust	Done	4/13/2009 04:06:06 PM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments: call cust and update them on inspection results

Confidential Comments:

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 04:37:47 PM	MLCAKTE	MLCAKTE	PAR Case Assessment		Done	4/6/2009 04:46:29 PM	Assessment

Contact Last Name	Contact First Name	Account	BAC Code

Comments: cust called in with a non-deployment concern with the vehicle. cust was involved in a collision. vehicle cut her off and she went head on into the guardrail.

crs informed cust that we would be sending an inspector to take a look at the vehicle.

TeresaMlak.ATX.PAR

Confidential Comments:

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 04:38:38 PM	MLCAKTE	MLCAKTE	BRC PAR	Inspection- EAA- Airbag	Done	4/6/2009 04:37:45 PM	vehicle location

Contact Last Name	Contact First Name	Account	BAC Code

Comments: Center Line
8000 Pearl Rd
Strongsville OH, 44136
440-891-5955

If you go to the office and let them know you are with GM they will help you out.

Confidential Comments:

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 04:33:06 PM	MLCAKTE	MLCAKTE	Outbound Call Thrd Party	Made Contact	Done	4/6/2009 04:36:36 PM	Centerline Collision 440-891-5955

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Crs adv: would like to verify that the vehicle is at your facility and to see if you would be willing to host an inspection.

snr: yes and sure

crs adv:
anyone in the office can help.
8000 Pean Rd
Strongsville OH, 44136

TeresaMlcak.ATX.PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 02:01:09 PM	MLCAKTE	MLCAKTE	Inbound Call Customer		Done	4/6/2009 04:33:05 PM	@

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Cust st: calling you back with the address and phone number of the vehicles location

crs adv: ok

cust st:

8000 peart rd in strongsville
440-891-5955

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 10:46:51 AM	KINZERTH	MLCAKTE	Ownership Changed		Done	4/6/2009 10:46:51 AM	Service Request Ownership has changed FROM: BENEDEJU TO: MLCAKTE

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 10:46:29 AM	KINZERTH	MLCAKTE	BRC PAR	Initial Contact- AVM	Done	4/6/2009 01:06:00 PM	Called DVM Aardal Paul 630092 8200
Contact Last Name		Contact First Name		Account		BAC Code	

Comments
CRS adv: calling concerning cust last name spelled [REDACTED] This is to adv you that her file has been reloaded in your area, cust concern is non-deployment of the airbags in a collision. The vehicle is a 2007 Chevrolet cobalt and the involved dealer is Serpentine Chevrolet of Strongsville.

You are not required to respond to this msg, however if you do have any questions or concerns regarding this file, pls feel free to give me a call at 1-866-790-5700 x41345 and you can reference SR# 71-714620721

TeresaMlcak.ATX.PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 10:46:17 AM	KINZERTH	MLCAKTE	BRC PAR	Initial Contact- Dealer	Done	4/6/2009 12:59:08 PM	Called Serpentine Chevrolet @ 440-878-6700 Keith- SM
Contact Last Name		Contact First Name		Account		BAC Code	

Comments
Speaking to the SM:

CRS adv: calling in regards to cust and vehicle.

Srv: ok

CRS adv: Are there any known product concerns that relate to the customer's allegation?

Srv: none on the airbags.

CRS adv: thats what I needed to know thank you

Srv: no a problem

TeresaMlcak/ATX/PAR

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 10:45:56 AM	KINZERTH	MLCAKTE	BRC PAR		Initial Contact- Phone	Done	4/6/2009 01:20:51 PM Called
Contact Last Name		Contact First Name		Account		BAC Code	

Comments
Crs adv: would like to go over the information given to the previous agent and ask just a couple more quick questions. Do you have a moment to speak with me?

Cust sts: ok

Crs adv: went over pro par and par detail form with cust

cust sts: was traveling down the highway when this vehicle cut me off and I slammed into the guardrail head on. I was traveling at 55mph

crs adv: I would like to send out an inspector to take a look at the vehicle but I will need the address and contact number for the vehicles location.

cust sts: I have all of that at home I will call you back with it

crs adv: thank you

TeresaMicak.ATX.PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 10:45:48 AM	KINZERTH	MLCAKTE	BRC PAR		Acknowledgement	Done	4/6/2009 01:07:40 PM Called
Contact Last Name		Contact First Name		Account		BAC Code	

Comments
Do you have a few moments to speak with me?

cust sts: yes

*Continued in initial activity

TeresaMicak.ATX/PAR

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 10:45:40 AM	KINZERTH	MLCAKTE	Notify CRM		Done	4/6/2009 11:17:48 AM	File Assigned

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 10:45:31 AM	KINZERTH	MLCAKTE	Research		Done	4/6/2009 11:16:51 AM	Research VIN

Contact Last Name	Contact First Name	Account	BAC Code

Comments

CRS Performed VIN Scan:

GMVIS: Found no open recalls

VIN: Found no duplicate file

SVC History: No service history related to allegation

TeresaMcak.ATX.PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 10:44:52 AM	KINZERTH	MLCAKTE	BRC PAR	Case Assigned	Done	4/6/2009 11:13:18 AM	Assigned to Teresa Mcak x41345

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 08:53:02 AM	KINZERTH	BENEDEJU	SR Opened		Done	4/6/2009 08:53:02 AM	SR In Status of Closed has been Re-Opened by KINZERTH

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 08:53:01 AM	KINZERTH	BENEDEJU	SR Closed - Satisfied		Done	4/6/2009 08:53:01 AM	Service Request has been Closed Satisfied.

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 08:25:26 AM	BENEDEJU	KINZERTH	Escalation	Initiate PAR	Done	4/6/2009 08:52:57 AM	Assigning activity to PAR QUEUE

Contact Last Name	Contact First Name	Account	BAC Code

Comments
CRS advised that a person from the PAR Department will contact the customer within 2 business days

Michelle (Julie) Benedetti/BA/CAC T1/Level 1

Received and assigned in PAR
Thaddeus Kinzer/PAR Workflow/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/6/2009 08:10:29 AM	BENEDEJU	BENEDEJU	Inbound Call Customer	Complex Request	Done	4/6/2009 08:24:46 AM	Alleged product allegation injury

Contact Last Name	Contact First Name	Account	BAC Code

Comments
Customer sts. She got involved in a car accident and airbag did not deploy.

Cust sks. set complaint

CRS advised customer that their information will be forwarded to the Product Allegation Department within the BRC.

Michelle (Julie) Benedetti/BA/CAC T1/Level 1

Confidential Comments

UCC Information

UCC Code	Symptom	Description
C47	SIR - Did Not Deploy	Restraints - (SIR) - Driver Side - Side Impact



TRAFFIC CRASH REPORT

(b) (6)

 CRASH SEVERITY
 1 FATAL 3 PDO
 2 INJURY 4 UNKNOWN
 3

 PRIVATE
 PROPERTY
 IF YES ☐

 HIT/NOT
 1 NOT HIT/NOT
 2 SOLVED
 3 UNCLYED
 3

 PHOTOS
 TAKEN
 IF YES ☒

 OH-2 OH-3 OH-1P OTHER
☒ ☒ ☐ ☐

(b) (6)

REPORTING AGENCY
Ohio State Highway Patrol#UNITS
02UNIT ERROR
02
00 = ANNUAL
01 = UNKNOWNDATE OF CRASH
04052009

TIME OF CRASH 1322 DAY OF WEEK SUN CITY VILLAGE TWP NAME (OF CITY, VILLAGE OR TOWNSHIP) Westfield COUNTY # 52 LATITUDE 41.012903 LONGITUDE 81.541757

PREFIX CRASH LOCATION IR0071 TYPE LOC 3 TYPE LOCATION POINT USED 1 NAMED STREET 1 NUMBERED ROUTE 1 NUMBERED STREET

DIST REFERENCE OR PREFIX REFERENCE 1M N 209 REPORT 06 REFERENCE POINT USED 01 STATE LINE 02 INTERSECTION 2 STREET 6 03 COUNTY LINE 14 HOUSE NUMBER 15 PLACE NAME NO REFERENCE 16 TOWNSHIP BOUNDARY 17 DRIVEWAY 18 MILE POST 19 STREET OR ROUTE NO 20 REFERENCE

UNIT # 01 # OF OCC. 02 NAME (LAST, FIRST, MIDDLE) Strongsville, Ohio

IP CODE Social Security Number DATE OF BIRTH AGE SEX F HOME PHONE # WORK PHONE #

DL STATE OH LP STATE LP # INJURED TAKEN BY 1 NONE 4 OTHER 2 EMS 3 UNKNOWN 5 POLICE TRANSPORTED BY INJURED TAKEN TO

OWNER NAME (IF SAME, WRITE "SAME") SAME ADDRESS (STREET, CITY, STATE, ZIP CODE)

 YEAR MAKE MODEL COLOR INSURANCE COMPANY TOWING SERVICE OWNER PHONE #
 2007 CHEV Cobalt BLU American Standard C & M

OFFENSE CHARGED OFFENSE DESCRIPTION CITATION # LOCAL CODE # IF YES

UNIT # 02 # OF OCC. 01 NAME (LAST, FIRST, MIDDLE) Unknown, Unknown

Address (STREET, CITY, STATE, ZIP CODE) Unknown

Social Security Number DATE OF BIRTH AGE SEX U HOME Phone # Work Phone #

DL STATE DL # LP STATE LP # INJURED TAKEN BY 1 NONE 4 OTHER 2 EMS 3 UNKNOWN 5 POLICE TRANSPORTED BY INJURED TAKEN TO

OWNER NAME (IF SAME, WRITE "SAME") Unknown, Unknown Address (STREET, CITY, STATE, ZIP CODE) Unknown

 YEAR MAKE MODEL COLOR INSURANCE COMPANY TOWING SERVICE OWNER PHONE #
 UNKN Unknown BLK None

OFFENSE CHARGED OFFENSE DESCRIPTION CITATION # LOCAL CODE # IF YES

UNIT # 01 NAME (LAST, FIRST, MIDDLE) Sheffield, Ohio

Address (STREET, CITY, STATE, ZIP CODE)

Social Security Number DATE OF BIRTH AGE SEX HOME Phone # Work Phone #

DL STATE DL # LP STATE LP # INJURED TAKEN BY 1 NONE 4 OTHER 2 EMS 3 UNKNOWN 5 POLICE TRANSPORTED BY INJURED TAKEN TO

OWNER NAME (IF SAME, WRITE "SAME") Address (STREET, CITY, STATE, ZIP CODE)

YEAR MAKE MODEL COLOR INSURANCE COMPANY TOWING SERVICE OWNER PHONE #

OFFENSE CHARGED OFFENSE DESCRIPTION CITATION # LOCAL CODE # IF YES

Motorist/Non-Motorist

Occupant

 SEATING POSITION
 01 FRONT - LEFT (DRIVER)
 02 FRONT - MIDDLE
 03 FRONT - RIGHT
 04 SECOND - LEFT (BC PAS)
 05 SECOND - MIDDLE
 06 SECOND - RIGHT
 07 THIRD - LEFT
 08 THIRD - MIDDLE
 09 THIRD - RIGHT
 10 SLEEPER SECTION OF CAB
 11 ENCLOSURE OR AREA
 12 UNENCLOSED CARGO AREA

 SAFETY EQUIPMENT
 04 MOTORIST
 07 NON-MOTORIST
 04 NON-MOTORIST
 04 NON-MOTORIST

 AIR BAG
 1 NOT DEPLOYED
 2 DEPLOYED FRONT
 3 DEPLOYED SIDE
 4 DEPLOYED BOTH
 5 PROTRUSION
 6 NOT APPLICABLE
 7 UNKNOWN

 AIR BAG SWITCH
 1 NOT PRESENT
 2 NON FUNCTION
 3 NON FUNCTION
 4 UNKNOWN

 EJECTION
 1 NOT EJECTED
 2 TOTALLY EJECTED
 3 PARTIALLY EJECTED
 4 NOT APPLICABLE
 5 UNKNOWN

 TRAPPED
 1 NOT TRAPPED
 2 EXTRACTED BY MECHANICAL MEANS
 3 PULLED BY NON-MECHANICAL MEANS
 4 UNKNOWN

 BLURIES
 1 NO BLUR
 2 POSSIBLE BLUR
 3 NON-PROTRUDING
 4 PROTRUDING
 5 FATAL INJURY
 6 UNKNOWN

UNIT NUMBERS 0 1 A 0 2 B		DAMAGED AREA 		PRE-CRASH ACTIONS 0 1 A 0 3 B		SEQUENCE OF EVENTS 0 8 A 1 2 B		POSTED SPEED 5 5 A 5 5 B		DRUG TEST STATUS 1 A 1 B	
NON-MOTORIST LOCATION 1 A 2 B		TYPE OF UNIT 0 2 A 0 2 B		CONTINUING CIRCUMSTANCES 1 4 A 0 9 B		NON-COLLISION 1 A 2 B		TRAFFIC CONTROL 1 2 A 1 2 B		DRUG TEST TYPE 1 A 1 B	
MOTORIST 1 A 2 B		POINT OF IMPACT 0 3 A 0 1 B		MOTORIST 1 A 2 B		CONDITION 1 A 8 B		DIRECTION 2 1 A 2 1 B		DRUG TEST 1/2 RESULT 1 A 2 B	
IN EMERGENCY RESPONSE 1 A 2 B		ACTION 3 A 1 B		VEHICLE DEFECT 1 A 2 B		FIRST HARMFUL EVENT 2 A 1 B		ALCOHOL/DRUG SUSPECTED 1 A 1 B		OCCURRENCE 4 A	
DAMAGE SCALE 4 A 1 B		STRIKING VEHICLE: 1 A 2 B		VEHICLE DEFECT 1 A 2 B		MOST HARMFUL EVENT 2 A 1 B		ALCOHOL TEST STATUS 1 A 1 B		ROAD CONDITION 0 1 A	
LOCAL REPORT # 5 5 A		LOCAL REPORT # 5 5 B		LOCAL REPORT # 5 5 C		LOCAL REPORT # 5 5 D		LOCAL REPORT # 5 5 E		LOCAL REPORT # 5 5 F	

Narrative

Unit #1 and Unit #2 were traveling north on IR0071. Unit #2 attempted to change lanes causing Unit #1 to lose control. Unit #1 drove to the right side of the road and struck a guardrail face. Unit #2 continued traveling northbound.

MANNER OF COLLISION OR IMPACT

1

- 1 NOT COLLISION BETWEEN TWO VEHICLES IN TRANSPORT
- 2 REAR END
- 3 HEAD ON
- 4 REAR TO REAR
- 5 BUCKING
- 6 JOLTS
- 7 SIDE BY SIDE, SAME DIRECTION
- 8 SIDE BY SIDE, OPPOSITE DIRECTION
- 9 UNKNOWN

WEATHER

0 1

- 01 CLEAR
- 02 CLOUDY
- 03 FOG, SMOG, SMOKES
- 04 RAIN
- 05 SLEET, HAIL (FREEZING RAIN DRIZZLE)
- 06 SNOW
- 07 REVERSE CROSSWINDS
- 08 BLOWING SAND, SOIL, DIRT, SNOW
- 09 OTHER
- 10 UNKNOWN

LIGHT CONDITIONS

1 2

- 1 DAYLIGHT
- 2 DARK
- 3 DUSK
- 4 DAWN - LIGHT BEFORE DAWN
- 5 DARK - NOT LIGHTED
- 6 DARK - UNKNOWN LIGHTING
- 7 GLARE
- 8 OTHER
- 9 UNKNOWN

SCHOOL BUS RELATED

1

- 1 NO
- 2 YES, DIRECTLY INVOLVED
- 3 YES, INDIRECTLY INVOLVED
- 4 UNKNOWN

WORK ZONE RELATED

2

- 1 NO
- 2 YES
- 3 UNKNOWN

TYPE OF WORK ZONE

3

- 1 LANE CLOSURE
- 2 LANE SHUTTLE/SEVERE
- 3 WORK ZONE SHOULDER OR BEDDING
- 4 INTERMITTENT ROAD WORK
- 5 OTHER

LOCATION OF CRASH IN WORK ZONE

4

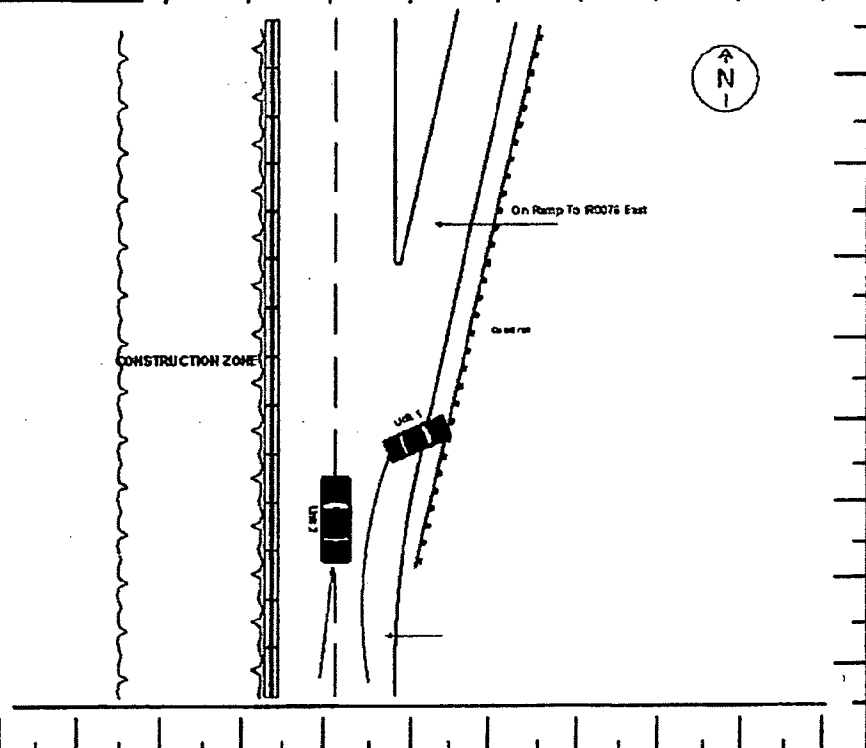
- 1 BEFORE FREE WORK ZONE
- 2 AFTER FREE WORK ZONE
- 3 TRANSECTION AREA
- 4 ACTIVITY AREA

WORKERS PRESENT

1

- 1 NO
- 2 YES
- 3 UNKNOWN

Diagram



Truck/Bus

UNIT #

THE CRASH INVOLVED ONE OR MORE OF THE FOLLOWING:
A TRUCK (MOTOR VEHICLE) WITH A GVWR MORE THAN 10,000 POUNDS, OR
A TRUCK (MOTOR VEHICLE) WITH A HAZARDOUS MATERIALS PLACARD, OR
A BUS DESIGNED FOR AT LEAST 8 PERSONS, INCLUDING DRIVER.

AND THE CRASH RESULTED IN ONE OR MORE OF THE FOLLOWING:
A FATALITY, OR
AN INJURY REQUIRING TRANSPORTATION FOR MEDICAL TREATMENT, OR
AT LEAST ONE VEHICLE WAS TOWED DUE TO DAMAGE OR REQUIRED INTERVENING ASSISTANCE BEFORE PROCEEDING UNDER ITS OWN POWER.

COMPANY (FROM SHIPPING PAPERS)

COMPANY PHONE

ADDRESS (STREET, CITY, ST, ZIP CODE)

US DOT

ICC MC

PUCO

TRAILER LP ST

TRAILER LP YEAR

TRAILER LP #

PLACARD #

DIA

CARDO BODY TYPE

1

- 01 NOT APPLICABLE
- 02 BUS (INCLUDING DOW OR)
- 03 VAN/ENCLOSED BOX
- 04 GRABBER/STAYAL

- 05 FOLE
- 06 CARGO TANK
- 07 FLATBED
- 08 DUMP

- 09 CONCRETE MIXER
- 10 AUTO TRANSPORTER
- 11 CARGO BODY FLIDE
- 12 OTHER
- 13 UNKNOWN

WEIGHT (GVWR)

- 1 LESS THAN 10,000
- 2 10,001 - 25,000
- 3 MORE THAN 25,000

CDL CLASS

- 1 CLASS A
- 2 CLASS B
- 3 CLASS C
- 4 CLASS M
- 5 CLASS D

HAZARDOUS MATERIALS PLACARD

- 1 NO
- 2 YES
- 3 UNKNOWN

HAZARDOUS MATERIALS RELEASED

- 1 NO
- 2 YES
- 3 NOT APPLICABLE
- 4 UNKNOWN

Police Action

DATE CRASH REPORTED

0 4 0 5 2 0 0 9

TIME REC CALL

1 3 2 3

DISPATCH

1 3 2 3

ARRIVED

1 3 2 8

CLEARED

1 4 0 5

OTHER

6 0

TOTAL MINUTES

0 1 0 2

OFFICER'S NAME

Neff, Mark

BADGE #

1 6 0 2

CHECKED BY

PCRUIZ

DATE REPORTED

0 4 0 6 2 0 0 9

LOCAL REPORT #

OHIO TRAFFIC ACCIDENT - DIAGRAM/NARRATIVE CONTINUATION

OH-2 (REV. 1/82)

LOCAL REPORT NUMBER	(b) (6)	REPORTING AGENCY	Ohio State Highway Patrol	DATE OF ACCIDENT	04/05/2009
IN COUNTY OF	Medina	ACCIDENT LOCATION	IR0071		

Notes:

Roadway was dry asphalt.

No adverse weather.

Crash occurred in the construction zone.

RP1=Milepost 209

Point "0"=15 feet west of MP 209

Baseline= East edge of IR 71 North

PT	AE	FE	Description
A	188.1	7.3	Start of right rear tire mark
B	234.1	19.2E	End of right rear tire mark
C	240.2	25.11E	Impact with guardrail face
D	282.1	18.8E	Right front tire Unit #1
E	282.10	10.3E	Right rear tire Unit #1

Damage analysis: Unit #1 had damage to right front fender, right front corner of hood, front bumper, grill, both front headlights and radiator.

Property Damage:

Approximately 17 feet of guardrail face and two wooden posts.

Owner: Ohio Department of Transportation

3220 Medina Road, Medina, OH 44256

330-723-0091

*Unit #2 never stopped after the crash. The driver of Unit #1 could not provide a license plate or a description of Unit #2's driver. No witnesses are available to the crash at this time.

;OH-1 will be supplemented if contact is made with Unit #2.

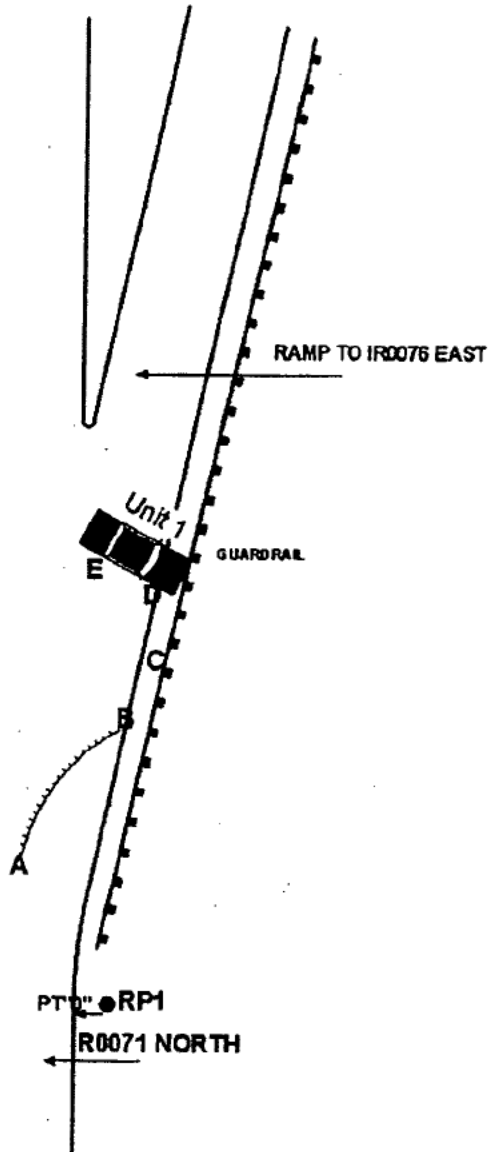
OHIO TRAFFIC ACCIDENT - DIAGRAM/NARRATIVE CONTINUATION

OH-2 (REV. 1/82)

LOCAL REPORT NUMBER (b) (6)	REPORTING AGENCY Ohio State Highway Patrol	DATE OF ACCIDENT 04/05/2009
IN COUNTY OF Medina	ACCIDENT LOCATION IR0071	

NOT TO SCALE

CONSTRUCTION ZONE



OH-3 REV 1/82

FOR LOCAL USE ONLY - DO NOT SUBMIT TO THE STATE EXCEPT FOR FATAL CRASHES

ADDRESS OF WITNESS	Strongsville, Ohio	PHONE
SIGNATURE OF	OFFICERS SIGNATURE	

OHIO TRAFFIC CRASH WITNESS STATEMENT

OH-3 REV 1/82

LOCAL REPORT NUMBER	(b) (6)	REPORTING AGENCY	Ohio State Highway Patrol	DATE OF CRASH	04/05/2009
---------------------------	---------	---------------------	---------------------------	---------------	------------

FOR LOCAL USE ONLY - DO NOT SUBMIT TO THE STATE EXCEPT FOR FATAL CRASHES

I, <u>Unknown, Unknown</u>		HEREBY MAKE THIS VOLUNTARY STATEMENT TO	
(PRINTED)			
Neff, Mark		AT	IR0071
(OFFICER'S NAME)		(LOCATION)	
ADDRESS OF WITNESS Unknown		PHONE	
SIGNATURE OF	OFFICER'S SIGNATURE		



(b) (6)



20090405





OHIO DEPARTMENT
OF PUBLIC SAFETY
EDUCATION • SERVICE • PROTECTION

TRAFFIC CRASH WITNESS STATEMENT

OH-3

LOCAL REPORT NUMBER (b) (6)	REPORTING AGENCY STATE HIGHWAY PATROL	DATE OF CRASH M 4 D 5 Y 09
---------------------------------------	--	-----------------------------------

FOR LOCAL USE ONLY - DO NOT SUBMIT TO THE STATE EXCEPT FOR FATAL CRASHES

I, **[REDACTED]** HEREBY MAKE THIS VOLUNTARY STATEMENT TO

PRINTED **SGT. NEFF** AT **IRVING TOWNSHIP** LOCATION

OFFICER'S NAME

* I was traveling in Right hand Lane and a black cut across in front of me and ran me off the road. a black 4 door car

Q. WHERE WERE YOU HEADED TOO?

A. I WAS COMING FROM WEST VIRGINIA AND GOING HOME TO STRONGSVILLE

Q. HOW FAST WERE YOU TRAVELING?

A. 55 MPH

Q. SEAT BELT USED?

A. YES

Q. ANY INJURIES?

A. I JUST BUMPED MY HEAD.

Q. DID YOU GET A LICENSE PLATE OFF THE OTHER VEHICLE?

A. NO

Q. WERE YOU ABLE TO SEE THE DRIVER OR ANY OCCUPANTS?

A. NO. I COULDN'T EVEN TELL YOU THE NAME OF THE CAR

Q. DID YOU NOTICE ANY TURN SIGNAL FROM THE OTHER CAR PRIOR TO IT CHANGING LANES?

A. NO

ADDRESS OF WITNESS **[REDACTED] Strongsville OH. [REDACTED]**

OFFICER'S SIGNATURE **[REDACTED]**



TRAFFIC CRASH WITNESS STATEMENT

OH-3

LOCAL REPORT NUMBER (b) (6)	REPORTING AGENCY STATE HIGHWAY PATROL	DATE OF CRASH M 4 10 5 1 Y 09
---------------------------------------	--	----------------------------------

FOR LOCAL USE ONLY - DO NOT SUBMIT TO THE STATE EXCEPT FOR FATAL CRASHES

I, CONTINUED P#2 HEREBY MAKE THIS VOLUNTARY STATEMENT TO
PRINTED

SGT NEFF AT IR 71
OFFICER'S NAME LOCATION

Q. WHERE WAS THE OTHER CAR LOCATED IN RELATION TO
YOUR VEHICLE PRIOR TO THE CRASH?
A. RIGHT NEXT TO MY CAR IN THE LEFT LANE.

Q. WERE YOU DOING ANYTHING AT ALL PRIOR TO THE CRASH
THAT MAY HAVE DISTRACTED YOU FROM DRIVING?
A. NO

8
ADDRESS OF WITNESS SEANESVILLE OH



Your Ref. No.: _____

OHIO STATE HIGHWAY PATROL

Application For Photographs

1. Use only this application form to order a standard 4 X 6 set of all printable photographs taken of this crash.
2. The crash report number and date of occurrence will have been completed by an Ohio State Highway Patrol employee. Please do not change the information on this form to request photographs of a different crash.
3. Write the name, address, and zip code of the person applying for the photographs in the block below.
4. Enclose a check in the amount of \$12 per set. Make check payable to: Ohio State Highway Patrol.
5. A Photo Enlargement Application, HP-90B, will be returned with the photographs and will list the fee per enlarged print. If enlargements are desired, the the completed HP-90B form must accompany the original print(s) selected for enlargement, along with the required fee.

Mail photographs to (Use BLACK INK only):

NAME _____		
STREET _____		
CITY _____	STATE _____	ZIP CODE _____

Mail Application to: Ohio State Highway Patrol
Attention: Photo Lab
Box 182074
Columbus, Ohio 43218-2074

Please allow 4-6 weeks for delivery of photographs.

FOR DEPARTMENTAL USE ONLY -- DO NOT WRITE BELOW THIS LINE

Crash Report Number _____ (b) (6) _____

Date of Crash _____ 20090405 _____

CDR File Information

User Entered VIN	1G1AK15F477
User	Edward M. Geiser
Case Number	71-714628721
EDR Data Imaging Date	Tuesday, April 14 2009
Crash Date	Sunday, April 5 2009
Filename	1G1AK15F477 CDR
Saved on	Monday, April 13 2009 at 12:04:19 PM
Collected with CDR version	Crash Data Retrieval Tool 3.1
Reported with CDR version	Crash Data Retrieval Tool 3.1
EDR Device Type	airbag control module
Event(s) recovered	Non-Deployment

IMPORTANT NOTICE: Robert Bosch LLC recommends that the latest production release of Crash Data Retrieval software be utilized when viewing, printing or exporting any retrieved data from within the CDR program. This ensures that the retrieved data has been translated using the most recent information including but not limited to that which was provided by the manufacturers of the vehicles supported in this product.

Data Limitations

Recorded Crash Events:

There are two types of recorded crash events. The first is the Non-Deployment Event. A Non-Deployment Event records data but does not deploy the air bag(s). The minimum SDM Recorded Vehicle Velocity Change, that is needed to record a Non-Deployment Event, is five MPH. A Non-Deployment Event contains Pre-Crash and Crash data. The SDM can store up to one Non-Deployment Event. This event can be overwritten by an event that has a greater SDM recorded vehicle velocity change. This event will be cleared by the SDM, after approximately 250 ignition cycles. This event can be overwritten by a second Deployment Event, referred to as Deployment Event #2, if the Non-Deployment Event is not locked. The data in the Non-Deployment Event file will be locked, if the Non-Deployment Event occurred within five seconds of a Deployment Event. A locked Non Deployment Event cannot be overwritten or cleared by the SDM.

The second type of SDM recorded crash event is the Deployment Event. It also contains Pre-Crash and Crash data. The SDM can store up to two different Deployment Events. If a second Deployment Event occurs any time after the Deployment Event, the Deployment Event #2 will overwrite any non-locked Non-Deployment Event. Deployment Events cannot be overwritten or cleared by the SDM. Once the SDM has deployed an air bag, the SDM must be replaced.

Data:

- SDM Recorded Vehicle Velocity Change reflects the change in velocity that the sensing system experienced during the recorded portion of the event. SDM Recorded Vehicle Velocity Change is the change in velocity during the recording time and is not the speed the vehicle was traveling before the event, and is also not the Barrier Equivalent Velocity. For Deployment Events, the SDM will record 220 milliseconds of data after deployment criteria is met and up to 70 milliseconds before deployment criteria is met. For Non-Deployment Events, the SDM can record up to the first 300 milliseconds of data after algorithm enable. Velocity Change data is displayed in SAE sign convention.
- Maximum Recorded Vehicle Velocity Change is the maximum square root value of the sum of the squares for the vehicle's combined "X" and "Y" axis change in velocity.
- Event Recording Complete will indicate if data from the recorded event has been fully written to the SDM memory or if it has been interrupted and not fully written.
- SDM Recorded Vehicle Speed accuracy can be affected by various factors, including but not limited to the following:
 - significant changes in the tire's rolling radius
 - final drive axle ratio changes
 - wheel lockup and wheel slip
- Brake Switch Circuit Status indicates the open/closed state of the brake switch circuit.
- Pre-Crash data is recorded asynchronously.
- Pre-Crash Electronic Data Validity Check Status indicates "Data Invalid" if:
 - the SDM receives a message with an "invalid" flag from the module sending the pre-crash data
 - no data is received from the module sending the pre-crash data
 - no module is present to send the pre-crash data

- Driver's and Passenger's Belt Switch Circuit Status indicates the status of the seat belt switch circuit, except: The Passenger Belt Switch Circuit Status for 2005 vehicles is available only on the Cadillac STS. The Passenger Belt Switch Circuit Status for 2005 Chevrolet Cobalt Sport Coupe (AP) model vehicles, with the option package that includes Recaro brand seats (RPO ALV), always reports a default value of "Buckled," because there is no passenger belt switch with the Recaro seat option.
- The Time Between Non-Deployment to Deployment Events is displayed in seconds. If the time between the two events is greater than five seconds, "N/A" is displayed in place of the time. If the value is negative, then the Deployment Event occurred first. If the value is positive, then the Non-Deployment Event occurred first.
- If power to the SDM is lost during a crash event, all or part of the crash record may not be recorded.
- The ignition cycle counter relies upon the transitions through OFF->RUN->CRANK power-moding messages, on the GMLAN communication bus, to increment the counter. Applying and removing of battery power to the module will not increment the ignition counter.
- Steering Wheel Angle data is displayed as a positive value when the steering wheel is turned to the right and a negative value

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when the steering wheel is turned to the left, except for Cadillac STS model vehicles with StabiliTrak 3.0 systems (RPO JL7). For Cadillac STS model vehicles with StabiliTrak 3.0 systems (RPO JL7), when the steering wheel is turned to the right, a negative value will be displayed and when the steering wheel is turned to the left, a positive value will be displayed. The Steering Wheel Angle data is reported in 16 degree increments.

Data Source:

All SDM recorded data is measured, calculated, and stored internally, except for the following:

- Vehicle Status Data (Pre-Crash) is transmitted to the SDM, by various vehicle control modules, via the vehicle's communication network.
- The Belt Switch Circuit is wired directly to the SDM.

Multiple Event Data

Associated Events Not Recorded	0
An Event(s) Preceded the Recorded Event(s)	No
An Event(s) was in Between the Recorded Event(s)	No
An Event(s) Followed the Recorded Event(s)	No
The Event(s) Not Recorded was a Deployment Event(s)	No
The Event(s) Not Recorded was a Non-Deployment Event(s)	No

System Status At AE

Vehicle Identification Number	**1AK15F*7*
Low Tire Pressure Warning Lamp (If Equipped)	Invalid
Vehicle Power Mode Status	Run
Remote Start Status (If Equipped)	Inactive
Run/Crank Ignition Switch Logic Level	Active
Brake System Warning Lamp (If Equipped)	OFF

System Status At 1 second

Transmission Range (If Equipped)	Fourth Gear
Transmission Selector Position (If Equipped)	Fourth Gear
Traction Control System Active (If Equipped)	Invalid
Service Engine Soon (Non-Emission Related) Lamp	OFF
Service Vehicle Soon Lamp	OFF
Outside Air Temperature (degrees F) (If Equipped)	59
Left Front Door Status (If Equipped)	Closed
Right Front Door Status (If Equipped)	Closed
Left Rear Door Status (If Equipped)	Unused
Right Rear Door Status (If Equipped)	Unused
Rear Door(s) Status (If Equipped)	Closed

Pre-crash data

Parameter	-2 sec	-1 sec
Reduced Engine Power Mode	OFF	OFF
Cruise Control Active (If Equipped)	Invalid	Invalid
Cruise Control Resume Switch Active (If Equipped)	Invalid	Invalid
Cruise Control Set Switch Active (If Equipped)	Invalid	Invalid

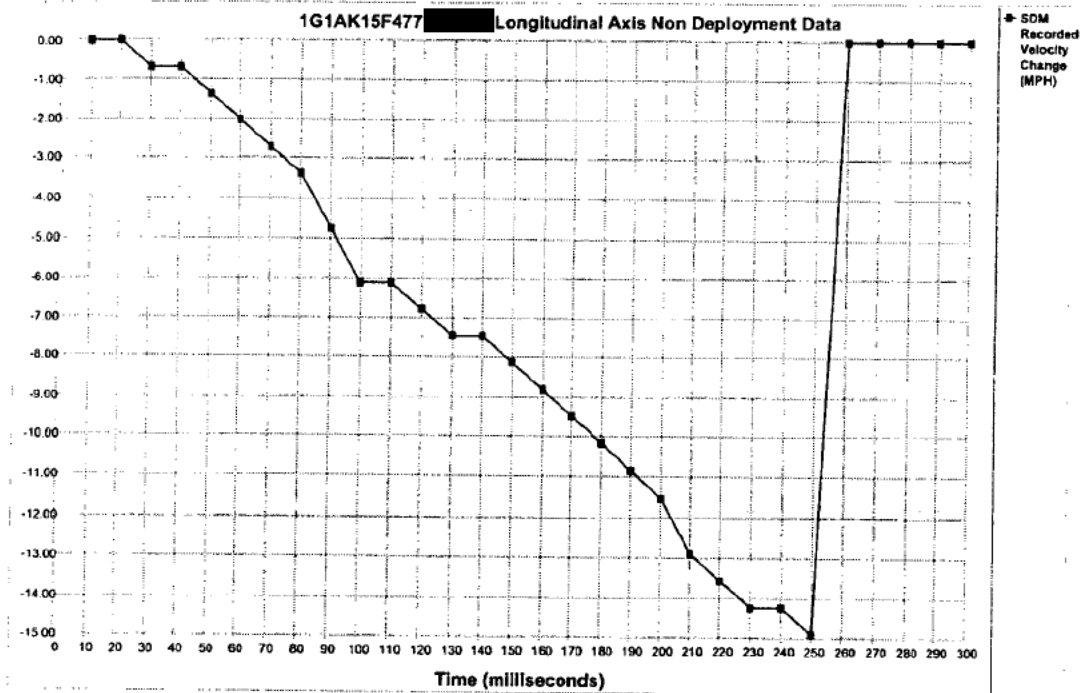
Pre-Crash Data

Parameter	-5 sec	-4 sec	-3 sec	-2 sec	-1 sec
Vehicle Speed (MPH)	63	62	61	61	55
Engine Speed (RPM)	2176	2112	2112	2112	1920
Percent Throttle Accelerator Pedal Position (percent)	18	18	18	28	19
Antilock Brake System Active (If Equipped)	0	0	0	9	0
Lateral Acceleration (feet/s ²) (If Equipped)	Invalid	Invalid	Invalid	Invalid	Invalid
Yaw Rate (degrees per second) (If Equipped)	Invalid	Invalid	Invalid	Invalid	Invalid
Steering Wheel Angle (degrees) (If Equipped)	Invalid	Invalid	Invalid	Invalid	Invalid
	0	0	0	0	0

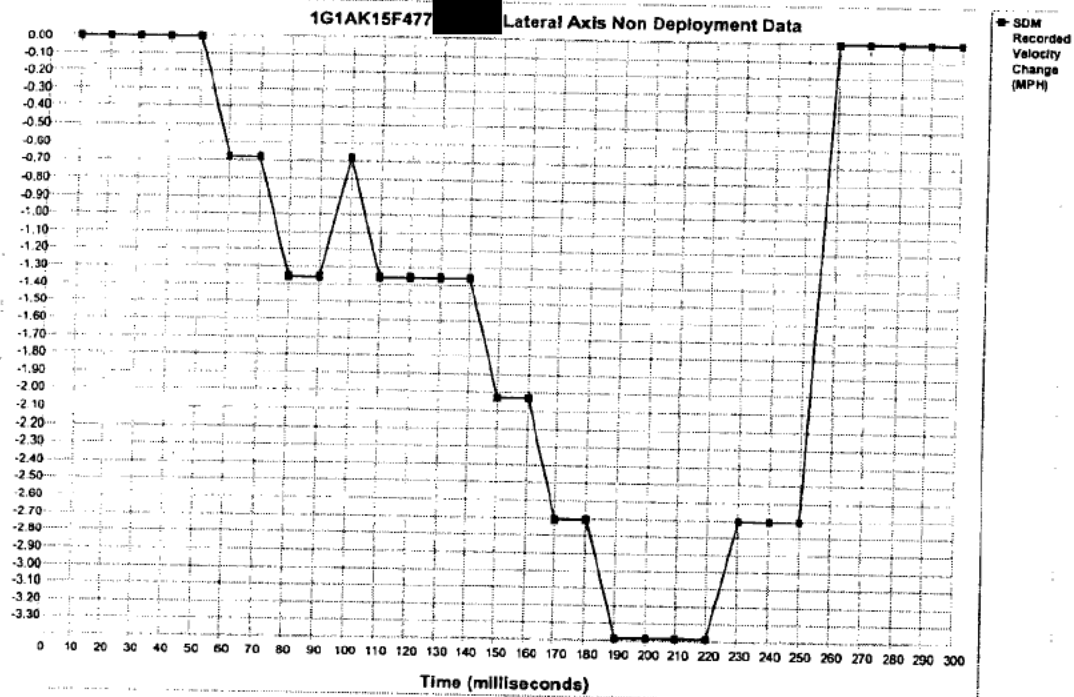
Parameter	-5 sec	-4 sec	-3 sec	-2 sec	-1 sec
Vehicle Dynamics Control Active (If Equipped)	Invalid	Invalid	Invalid	Invalid	Invalid

System Status At Non-Deployment

Ignition Cycles At Investigation	7700
SIR Warning Lamp Status	OFF
SIR Warning Lamp ON/OFF Time (seconds)	655200
Number of Ignition Cycles SIR Warning Lamp was ON/OFF Continuously	7695
Ignition Cycles At Event	7696
Ignition Cycles Since DTCs Were Last Cleared	254
Driver's Belt Switch Circuit Status	UNBUCKLED
Passenger's Belt Switch Circuit Status	BUCKLED
Automatic Passenger SIR Suppression System Validity Status	Valid
Automatic Passenger SIR Suppression System Status	Air Bag Not Suppressed
Diagnostic Trouble Codes at Event, fault number: 1	N/A
Diagnostic Trouble Codes at Event, fault number: 2	N/A
Diagnostic Trouble Codes at Event, fault number: 3	N/A
Diagnostic Trouble Codes at Event, fault number: 4	N/A
Diagnostic Trouble Codes at Event, fault number: 5	N/A
Diagnostic Trouble Codes at Event, fault number: 6	N/A
Maximum SDM Recorded Velocity Change (MPH)	15.16
Algorithm Enable to Maximum SDM Recorded Velocity Change (msec)	250
Driver First Stage Deployment Loop Commanded	No
Driver Second Stage Deployment Loop Commanded	No
Driver Side Deployment Loop Commanded	No
Driver Pretensioner Deployment Loop Commanded	No
Driver (Initiator 1) Roof Rail/Head Curtain Loop Commanded	No
Driver (Initiator 2) Roof Rail/Head Curtain Loop Commanded	No
Driver Knee Deployment Loop Commanded	No
Passenger First Stage Deployment Loop Commanded	No
Passenger Second Stage Deployment Loop Commanded	No
Passenger Side Deployment Loop Commanded	No
Passenger Pretensioner Deployment Loop Commanded	No
Passenger (Initiator 1) Roof Rail/Head Curtain Loop Commanded	No
Passenger (Initiator 2) Roof Rail/Head Curtain Loop Commanded	No
Passenger Knee Deployment Loop Commanded	No
Driver Anchor Pretensioner Deployment Loop Commanded (If Equipped)	No
Second Row Left Pretensioner Deployment Loop Commanded	No
Third Row Left Roof Rail/Head Curtain Loop Commanded	No
Passenger Anchor Pretensioner Deployment Loop Commanded (If Equipped)	No
Second Row Right Pretensioner Deployment Loop Commanded	No
Third Row Right Roof Rail/Head Curtain Loop Commanded	No
Second Row Center Pretensioner Deployment Loop Commanded	No
Crash Record Locked	No
Vehicle Event Data (Pre-Crash) Associated With This Event	Yes
Deployment Event Recorded in the Non-Deployment Record	No
Event Recording Complete	Yes



Time (milliseconds)	10	20	30	40	50	60	70	80	90	100	110	120	130	140	150
SDM Longitudinal Axis Recorded Velocity Change (MPH)	0.00	0.00	-0.68	-0.68	-1.36	-2.03	-2.71	-3.39	-4.74	-6.10	-6.10	-6.78	-7.46	-7.46	-8.13
Time (milliseconds)	160	170	180	190	200	210	220	230	240	250	260	270	280	290	300
SDM Longitudinal Axis Recorded Velocity Change (MPH)	-9.81	-9.49	-10.17	-10.85	-11.52	-12.20	-12.88	-13.56	-14.23	-14.91	0.00	0.00	0.00	0.00	0.00



Time (milliseconds)	10	20	30	40	50	60	70	80	90	100	110	120	130	140	150
SDM Lateral Axis Recorded Velocity Change (MPH)	0.00	0.00	0.00	0.00	0.00	-0.68	-0.68	-1.36	-1.36	-0.68	-1.36	-1.36	-1.36	-1.36	-2.03
Time (milliseconds)	160	170	180	190	200	210	220	230	240	250	260	270	280	290	300
SDM Lateral Axis Recorded Velocity Change (MPH)	-2.03	-2.71	-2.71	-3.39	-3.39	-3.39	-3.39	-2.71	-2.71	-2.71	0.00	0.00	0.00	0.00	0.00

Hexadecimal Data

Data that the vehicle manufacturer has specified for data retrieval is shown in the hexadecimal data section of the CDR report. The hexadecimal data section of the CDR report may contain data that is not translated by the CDR program. The control module contains additional data that is not retrievable by the CDR system.

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\$B8 43 48 70 02 09
\$C1 30 46 30 37
\$CA 30 46 30 37
\$CB 01 89 6E 6B
\$CC 01 89 6E 6B
\$D1 00 00
\$DB 00 00
\$DC 00 00

Comments

2007 Cobalt owned and driven by [REDACTED]

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